

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

Complainant's Response in Opposition to Respondent's Motion for Reconsideration¹

While Complainant acknowledges the Commission's July 30, 2025 Order denying the Motion without prejudice, Complainant finds it necessary to respond. First to two erroneous assumptions embedded in that ruling and then to other issues:

First, the Order speculates that Complainant suffers no prejudice from the requested extension. That is not the case. Complainant is held to tight deadlines and, unlike Respondent, has complied with every rule and order to date. Granting a de facto extension, on the eve of the deadline and absent any valid basis, not only disrupts a carefully structured briefing schedule but signals to litigants that procedural noncompliance and attorney disorganization will be tolerated, or worse, rewarded.

Complainant's representative is scheduled to undergo major surgery in August and has timed all filings accordingly; so yes, five days does matter to Complainant, as this is not the representative's only active matter before the Commission, and they have additional non-casework subject to immovable deadlines. Unlike Respondent, Complainant does not consider personal medical procedures, voluntary travel, lack of ability to manage their own calendar, or office staffing changes to be appropriate grounds for judicial indulgence. Nor has Complainant attempted to burden the Commission with its internal

¹ Complainant incorporates by reference its July 29, 2025 Response in Opposition to Respondent's Motion for Extension of Time, which addressed many of the same procedural and legal deficiencies now repackaged in Respondent's Motion for Reconsideration.

hardships. Respectfully, the Presiding Officer's opinion on the absence of perceived "prejudice" in the record is not because none exists; it is because Complainant, as a matter of professionalism, refrains from interjecting personal matters into Commission filings and does not excuse delays by reference to personal matters or office drama.

Complainant expressly stated in its opposition that it is prejudiced. The burden of justification falls on the movant; not on the non-moving party to prove that undeserved delay is prejudicial. The Commission's own rules place the obligation squarely on the filer to demonstrate "good cause." When none is provided, the motion fails. The Presiding Officer's suggestion that an extension is harmless improperly inverts that standard.

Second, Complainant rejects the implication that parties are obliged to accommodate last-minute extension requests simply because the other side failed to plan properly. Professional courtesy is not a substitute for procedural compliance. No courtesy is owed to an opponent who files a legally baseless, procedurally non-compliant, and facially incorrect motion on the eve of a dispositive deadline in order to buy themselves more time particularly after being denied a similar request less than two weeks earlier.

Additionally, Commission Rule 502.102(a) requires motions for extension to be filed at least seven (7) days prior to the scheduled deadline and permits untimely motions only "where reasonable grounds are found for the failure to meet this requirement." Respondent's original Motion, filed two days before the July 31 deadline, failed to identify any reason for missing the seven-day requirement. The Presiding Officer's July 30 Order correctly noted that "Respondent provides no reason for the delay."

Now, in its Motion for Reconsideration, Respondent attempts to backfill that omission by claiming counsel was "in transit" and "recently lost his paralegal." Neither excuse constitutes

reasonable grounds, nor do they rise to the level of “good cause” required under § 502.102(a), let alone the “exceptional circumstances” standard under § 502.102(b) that governs late-filed documents.

What Respondent now offers is not law...it is an excuse.

Respondent’s latest Motion suffers from the same fatal flaws as the original:

- It cites § 502.102(a) but fails to meet even that rule’s basic requirement: a valid reason for missing the seven-day mark.
- “Travel” and “loss of a paralegal” do not prevent counsel from timely filing routine motions—particularly when counsel has had notice of the deadline since entering the case on July 22.
- There is still no explanation for why Respondent could not have moved for an extension in the seven days before the deadline, when Complainant’s Motion for Summary Judgment was already pending.

Deadlines are not optional. The Commission’s July 18 Order clearly stated that “Respondent must respond to the Motion for Summary Judgment no later than July 31, 2025.” Respondent continues to treat that order as advisory.

Further, Respondent’s filings continue to bear incorrect captioning, including use of the term “Claimant” in place of the correct “Complainant.” These are not mere typographical oversights; they reflect a persistent lack of respect and diligence; further reason to deny relief and enforce deadlines firmly.

The first attempt at an extension was already denied. The law requires good cause. Respondent has failed to meet that standard not once, but twice. This is Respondent’s third attempt to derail the procedural schedule; first via a motion to stay, then an untimely motion for extension, and now a

request for reconsideration premised on unsubstantiated hardship. These tactics are transparent and abusive.

Point 8 of Respondent's original Motion confirms it was fully aware Complainant opposed the extension, yet chose to file a perfunctory and legally baseless motion anyway, demonstrating disregard for both Commission rules and the duty of candor in an attempt to abuse the motion process to delay proceedings and secure a de facto extension.

Complainant respectfully reiterates its request that no further extensions be granted and that the July 31 deadline be enforced in full. Respondent's Motion for Reconsideration is procedurally deficient, legally unsupported, and factually dishonest. The deadline for filing a response to summary judgment was July 31. Today. No good cause was shown for failing to comply. The Motion should be denied, with prejudice.

Respectfully submitted,

Sara Dandan

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Date: 07/31/2025

CERTIFICATE OF SERVICE

I certify that on July 31st, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

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